Tata Power Delhi Distribution Ltd vs Delhi Electricity Regulatory ... on 23 March, 2015

Court-II

Before the Appellate Tribunal for Electricity
(Appellate Jurisdiction)

Appeal No. 165 of 2014

Dated : 23rd March, 2015

Present : Hon'ble Mr. Justice Surendra Kumar, Judicial Member
Hon'ble Mr. T. Munikrishnaiah, Technical Member

In the matter of:

Tata Power Delhi Distribution Ltd. .... Appellant(s)
Versus
Delhi Electricity Regulatory Commission & Ors. .... Respondent(s)

Counsel for the Appellant (s) :Mr. Manish Kumar Srivastava
Mr. K Datta,

Counsel for the Respondent (s) :Mr. Dhananjay Baijal for
Mr. Nikhil Nayyar for R-1

ORDER

Mr. Manish Kumar Srivastava, learned Counsel appearing for the Appellant Tata Power Delhi Distribution Limited submits that the Appellant wants to withdraw this Appeal being Appeal No.165 of 2014.

The instant Appeal No.165 of 2014 has been filed by the Appellant M/s. Tata Power Delhi Distribution Limited u/s 111 of the Electricity Act, 2003 against the Impugned Order dated 6.5.2014 in Petition No.26 of 2010 titled as Mr. N K Sharma Vs M/s. Tata Power Delhi Distribution Ltd, the distribution licensee whereby the learned Counsel for the State Commission had decided the Petition of the Respondent Mr. N K Sharma filed u/s 142 of the Electricity Act, 2003 for violation of the provisions of Regulations 52 of the DERC Supply Code, 2007 (DERC Supply Code and Performance Standards Regulations, 2007).

On finding guilty on the said counts, the Appellant has been imposed with a penalty of Rs.20,000/- and at the same time granted a compensation of Rs.10,000/- to the consumer namely Mr.N K Sharma u/s 57 of the Electricity Act, 2003 for failure of the Distribution Licensee, the Appellant to meet the Standards of Performances and causing loss and harassment to the consumer Mr. N K Sharma.

Though the learned Counsel for the Appellant has been heard partly and it is fixed for the remaining arguments today, but, since the Appellant does not want to press this Appeal and wants to withdraw the same, we hereby allow the Appellant to withdraw this Appeal.

Accordingly, the instant Appeal No.165 of 2014 is hereby allowed to be withdrawn without any order as to cost.

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( T. Munikrishnaiah )                          ( Justice Surendra Kumar )
 Technical Member                                     Judicial Member

HCJ/DK
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